THE NATIONAL COMPANY LAW TRIBUNAL

BENCH V, NEW DELHI

CA (CAA)-77/230/232/ND/2020

Under Sections 230-232 and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016

IN THE MATTER OF:

SCHEME OF AMALGAMATION

OF

AARADHYA BUILDERS PRIVATE LIMITED

...(TRANSFEROR COMPANY-1)

AND

LIFEWOOD VINTRADE PRIVATE LIMITED

...(TRANSFEROR COMPANY 2)

AND

RV BUILDWELL PRIVATE LIMITED

...(TRANSFEROR COMPANY 3)

AND

SHUBHI PROPERTY CONSULTANCY PRIVATE LIMITED

...(TRANSFEROR COMPANY 4)

AND

TOPFLOW COMMOTRADE PRIVATE LIMITED

...(TRANSFEROR COMPANY 5)

WITH

APRICITY INFRATECH PRIVATE LIMITED

...(TRANSFEREE COMPANY)

Order Reserved On : 29.11.2021

Order pronounced On: 21.01.2022

CORAM:

SH. ABNI RANJAN KUMAR SINHA, HON'BLE MEMBER(J)

SH. AVINASH K. SRIVASTAVA, HON'BLE MEMBER (T)

PRESENT

For the Applicants: Adv. Sachin Arora
For the Respondent :

MEMO Of PARTIES

In the Matter of Companies Act, 2013

Section 230 to 232

AND

In the Matter of:

1. **AARADHYA BUILDERS PRIVATE LIMITED**
   Company incorporated under the Companies Act, 1956
   Having Registered Office at Plot No. A-29, GF, Kh.No. 48/19,
   P&T Block, Rajdhani Park, Nangloi, New Delhi-110041, India.
   Through its Director Mr. Ashok Gupta
   DIN: 02399021

   ...(Applicant 1/Transferor Company 1)

2. **LIFEWOOD VINTRADE PRIVATE LIMITED**
   Company incorporated under the Companies Act, 1956
   Having Registered Office at Plot No. A-29, GF, Kh.No. 48/19,
   P&T Block, Rajdhani Park, Nangloi, New Delhi-110041, India.

Through its Director Mr. Ashok Gupta

DIN: 02399021

...(Applicant 2/Transferor Company 2)

3. **R V BUILDWELL PRIVATE LIMITED**

Company incorporated under the Companies Act, 1956

Having Registered Office at 2nd Floor, 72, Sainik Vihar, Pitampura, Delhi-110034, India

Through its Director Mr. Vinod Goyal

DIN: 00063846

...(Applicant 3/Transferor Company 3)

4. **SURBHI PROPERTY CONSULTANCY PRIVATE LIMITED**

Company incorporated under the Companies Act, 1956

Having Registered Office at 115e, Kamla Nagar, Delhi-110007, India.

Through its Director Mr. Kartik Gupta

DIN: 00063929

...(Applicant 4/Transferor Company 4)

5. **TOPFLOW COMMOTRADE PRIVATE LIMITED**

Company incorporated under the Companies Act, 1956

Having Registered Office at Plot No. A-29, GF, Kh.No. 48/19, P&T Block, Rajdhani Park, Nangloi, New Delhi-110041, India.

Through its Director Mr. Ashok Gupta

DIN: 02399021

...(Applicant 5/Transferor Company 5)

6. **APRICITY INFRATECH PRIVATE LIMITED**

Company incorporated under the Companies Act, 2013

Having Registered Office at Plot No. A-29, GF, Kh.No. 48/19,
P&T Block, Rajdhani Park, Nangloi, New Delhi-110041, India.
Through its Director Mr. Ashok Gupta
DIN: 02399021

...(Applicant 6/Transferee Company)

ORDER

PER SH. AVINASH K. SRIVASTAVA, MEMBER (TECHNICAL)

1. This is an Application for Amalgamation of the following Companies :

   1. Aaradhya Builders Private Limited/Transferor Company 1
   2. Lifewood Vintrade Private Limited/Transferor Company 2
   3. RV Buildwell Private Limited/Transferor Company 3
   4. Shubhi Property Consultancy Private Limited/Transferor Company 4
   5. Topflow Commotrade Private Limited/Transferor Company 5

   With

   Apricity Infratech Private Limited/Transferee Company

2. This is the First Motion Application in which it has been requested to dispense with requirement for convening of meeting of Equity Shareholders, Secured Creditors and Unsecured Creditors of the five Transferor Companies as well as the Transferee Company including the requirement of issue and publication of notices and for permitting the filing of application, petition and other documents as may be required for sanctioning the proposed Scheme of Arrangement (the Scheme). The relief is sought under Section 232 read with 230 of the Companies Act, 2013 and Companies (Compromises, Arrangements and Amalgamations) Rules, 2016, and other applicable provisions.

3. **Rationale for the Scheme of Amalgamation:**

(i) Merger shall result in consolidation of respective operations served by one platform thereby leveraging the capabilities of entity;

(ii) Pooling of assets, proprietary, information, personnel, financial, managerial and technical resources of the companies.

(iii) Reducing the number of legal entities in the group structure and thereby eliminating administrative duplication and consequently reducing the administrative costs, etc.

4. Appointed date for the scheme has been kept as 1st April, 2020.

5. **Aaradhya Builders Private Limited/Transferor Company-1,** was incorporated on 23.01.2012 as a Private Limited Company having CIN-U70109WB2012PTC172720. The Transferor Company 1 later shifted to NCT of Delhi, by order of RD, Kolkata. It is inter alia engaged in business of acquiring by purchase, lease, exchange, hire or otherwise develop or operate land, buildings etc. It has authorised share capital of Rs. 18,70,000/- and issued subscribed and paid up capital is Rs. 18,64,550/- each equity share being of Re1/-. Its Board of Directors has approved and adopted the Scheme in their meeting held on 17.07.2020. It has 6 (six) shareholders and all of them have give their consent in writing **(Annexure A-6)**. All the 6 (six) Equity Shareholders have given their consent that the holding of the meeting of the Equity Shareholders may be dispense with**.** The original consent affidavits of the Equity Shareholders are placed at **(Annexure A-7)**. Out of 18,64,550 equity shares, 45.59 per cent share holding is held by Lifewood Vintrade Private limited/Transferor Company 2 and another 45.59 per cent share holding is held by Topflow Commotrade Private Limited/Transferor Company 5. It has no Secured Creditors and no Unsecured Creditors as on 15.07.2020. The requisite certificate of the Chartered Accountant is placed at **(Annexure A-9 and A-10)**.

6. **Lifewood Vintrade Private Limited/Transferor Company 2,** was incorporated on 20.01.2012 as a Private Limited Company having CIN-U51909WB2012PTC172664. It was later shifted to NCT Delhi by the order of RD, Kolkata. It is inter alia engaged in the business of exports, importers, buyers, sellers, traders, merchants, brokers, commission agents in various products. Its authorised share capital is 2,00,000 equity shares of Re 1/- each and its issued, subscribed and paid up capital is 1,12,500 equity shares of Re 1/- each. Its Board of Directors has approved and adopted the Scheme in their meeting held on 17.07.2020. It has two shareholders and they have given their consent to the Scheme representing 100 percent in number and 100 percent in value of the total Equity Shares. Its 2 Equity Shareholders are M/s Topflow Commotrade Private Limited/Transferor Company 5 and M/s Appricity Infratech Private Limited/Transferee Company, each Company having 50 per cent share holding. Their consent is at **(Annexure A-7)**. It has no Secured Creditors as on 15.07.2020 and no Unsecured Creditors. The Chartered Accountant certificate to this effect is at **(Annexure A-9 and A-10)**.

7. **R V Buildwell Private Limited/Transferor Company 3,** was incorporated on 23.07.2004, having CIN-U45801DL2004PTC127838 and registered office at Delhi. It is inter alia engaged in the business of Contractors, builders, town planners, estate developers, etc. It has authorised Share Capital is 50,000 Equity Shares of Rs. 10/- each and its issued subscribed and paid up capital is 40,000 Equity Sharesof Rs. 10/- each. Its Board of Directors has approved and adopted the Scheme at the meeting held on 17.07.2021. It has three shareholders whose original consent affidavits at **(Annexure A-7)**. It has no Secured Creditors as on 15.07.2020 and one Unsecured Creditor who has given consent to the Scheme **(Annexure A-9 and A-10)**.

8. **Shubhi Property Consultancy Private Limited/Transferor Company 4,** was incorporated as Shubhi Financial Services Private Limited on 01.10.1991 as a Private Limited Company. It changed its name to Shubhi Property Consultancy Private Limited vide certificate of Incorporation pursuant to change of name dated 03.04.2020 issued by RoC Delhi, its registered office is in Delhi. It is inter alia engaged in the business of providing services, advisory and consultancy in real estate sector. Its Share Capital is 5,00,000 Equity Shares of Rs. 10/- each and its Issued, Subscribed and paid up Capital is 2,83,090 Equity Shares of Rs. 10/-each. Its Board of Directors has approved and adopted the scheme of amalgamation in their meeting held on 17.07.2020. It has 4 Shareholders and they have given their consent representing 100 percent in number and 100 percent in value to the Scheme **(Annexure A-7)**. It has no Secured Creditor as on 15.07.2020 and one Unsecured Creditor who has given his consent to the Scheme of writing **(Annexure A-9 and A-10)**.

9. **Topflow Commotrade Private Limited/Transferor Company 5,** was incorporated on 20.01.2012 as a Private Limited Company having CIN-U51909WB2012PTC172667. The Company later shifted to NCT of Delhi by order of RD, Kolkata and registered with RoC Delhi on 03.10.2019. It is inter alia engaged in the business of exports, importers, buyers, sellers, brokers, commission agents in various products. It has two shareholders and they have given their consent to the Scheme **(Annexure A-7)**. It has no Secured Creditor and no Unsecured Creditor and the same has been certified by the Chartered Accountant/Auditor **(Annexure A-9 and A-10)**.

10. **Apricity Infratech Private Limited/Transferee Company,** was incorporated on 20.08.2015 as a Private Limited Company having CIN-U70102DL2015PTC284314; its registered office is at Delhi. It is inter alia engaged in the business of purchase, acquire, exchange any area,

land, building, structure and to develop dispose of or maintain the same. Its Share Capital is 10,000 Equity Shares of Rs. 10/- each and the Issued, Subscribed and paid up capital is also 10,000/- Equity shares of Rs. 10/- each. The Board of Directors of the Transferee Company has approved and adopted the Scheme at their meeting held on 17.07.2021. It has two Equity Shareholders i.e. M/s Lifewood Vintrade Private Limited/Transferor Company 2 and Topflow Commotrade Private Limited/Transferor Company 5 holding 50 percent shareholding each in the Transferee Company. Both the Shareholders have given their consent to the Scheme **(Annexure A-7)**. The Transferee Company has no Secured Creditor and two Unsecured Creditors having outstanding balance of Rs. 12,35,000/-. Both the Unsecured Creditors have consented to the scheme **(Annexure A-9 and A-10)**.

11. A copy of the audited annual accounts for the year ended 31st March 2020, 31st March, 2019 and 31st March, 2018 of the 5 Transferor Companies and the Transferee Company has been filed as also a copy of the Provisional Unaudited Accounts of the Companies as on 15.07.2020.

12. The auditors of the applicant Companies have certified that the accounting treatment proposed in the Scheme of amalgamation is in conformity with the accounting standards prescribed under Section 133 of the Companies Act.

13. As per the Scheme, all the employees of the Transferor Companies in service on the date immediately proceeding the effective date (date on which certified copies of Hon'ble NCLT order sanctioning the scheme are filed with the concerned RoC) shall become the employees of the Transferee Company upon terms not less favourable then those subsisting in the Transferor Companies on the said date. The authorised Share Capital of the Transferor Companies will get merged

with the authorised Share Capital of the Transferor Companies. Accordingly, the Share Capital of the Transferee Company shall become Rs. 78,70,000 divided into 7,87,000 Equity Shares of Rs. 10/- each. The Transferee Company shall, subject to cancellation of Shares, issue and allot Equity Shares of face value of Rs. 10/- each in Transferee Company credited as fully paid up to the Members of the Transferor Companies in the Share Exchange Ratio. As the entire Share Capital of Transferor Companies 2 and 5 is held by other Transferor Companies and Transferee Company, no shares of the Tranferee Company shall be issued or allotted to the Shareholders of the Transferor Company 2 and 5 and the paid up Share Capital of Transferor company 2 and 5 shall stand cancelled and extinguished. The Shares of Tranferee Company will be issued only to the shareholders out standing after cancellation of any cross-holding in between the Transferor Companies and between the Transferor Companies and Transferee Company. The valuers have prescribed the Share Exchange Ratio as follows:

(i) 6.19 Equity Shares of Rs. 10/- (Rupees Ten only) each of the Transferee Company for every 1(one) Equity Shares of Re 1/- (Rupees one only) each in Aaradhya Builders Private Limited i.e. Transferor Company No. 1.

(ii) 0.88 Equity Shares of Rs. 10/- (Rupees Ten only) each of the Transferee Company for every 1 (One) Equity Shares of Re 1/- (Rupees One only) each in Lifewood Vintrade Private Limited i.e. Transferor Company No. 2.

(iii) 4.87 Equity Shares of Rs. 10/- (Rupees Ten only) each of the Transferee Company for every 1 (One) Equity Shares of Rs. 10/- (Rupees Ten only) each in R V Buildwell Private Limited i.e. Transferor Company No. 3.

(iv) 0.59 Equity Shares of Rs. 10/- (Rupees Ten only) each of the Transferee Company for every 1 (One) Equity Shares of Rs. 10/- (Rupees Ten only) each in Shubhi Property Consultancy Private Limited i.e. Transferor Company No. 4.

(v) 0.88 Equity Shares of Rs. 10/- (Rupees Ten only) each of the Transferee Company for every 1 (One) Equity Shares of Re 1/- (Rupees One only) each in Topflow Commotrade Private Limited i.e. Transferor Company No. 5.

A copy of the Report of Valuation of Shares and Exchange Ratio dated 16th July, 2020 issued by Mr. Subodh Kumar, the Registered Valuer is annexed herewith as **(AnnexureA-14)**.

14. It has been submitted that there is no investigation or proceedings pending against the Transferor Companies and Transferee Company and that the scheme is not prejudicial to the interest of the Shareholders and Creditors of the Transferor Companies and Transferee Company.

15. In view of above, since shareholders of all the companies have given their consent for dispensation of convening the meeting, hence we hereby dispense with the convening the meeting of shareholders and by exercising powers under Section 230(9) of the Companies Act, 2013, we hereby dispense with the requirement of convening the meeting of Secured Creditors and Unsecured Creditors of the five Transferor Companies and of the Transferee Company.

16. The present petition i.e. CA (CAA)-77/230/232/ND/2020 is **disposed of** in terms of aforesaid directions.

-Sd-

21/1/2022

(AVINASH K. SRIVASTAVA)
MEMBER (T)

-Sd-

(ABNI RANJAN KUMAR SINHA)
MEMBER (J)